

Court No. - 29

Case :- WRIT - C No. - 42114 of 2009

Petitioner :- Dhirendra Kumar And Others

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Shelendra Kumar Badhotia

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put up as fresh on 28.8.2009.

Order Date :- 25.8.2009

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Case :- WRIT - C No. - 42114 of 2009

Petitioner :- Dhirendra Kumar And Others

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Shelendra Kumar Badhotia

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put up as fresh on 3rd September, 2009.

Order Date :- 28.8.2009

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Court No. - 29

Case :- WRIT - C No. - 42114 of 2009

Petitioner :- Dharendra Kumar And Others

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Shelendra Kumar Badhotia

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Heard learned counsel for the petitioner and learned counsel for the State-respondent.

Sri Rajesh Tripathi, appears for respondent no.2. He prays for and is allowed three weeks' time for filing counter affidavit. Rejoinder affidavit may be filed within a week thereafter.

List this case on 26th October, 2009.

Learned counsel for the petitioner submits that the petitioner's father has taken electricity connection in the year 1978 for operating tube-well. In the year 1988 boring failed as ground water was too low to be drawn by the tube-well. The Assistant Engineer, after inspections submitted a report on 6-10-1991 to the Sub Divisional Officer confirming that the boring had failed and the petitioner's father was not using the electricity. The electricity connection was disconnected.

The petitioner's father moved an application on 3-8-1993 for restoring his electricity connection but it could not be restored. Now a notice for recovery of Rs.1,35,529/- is said to have been sent towards arrears of electricity dues by the electricity department on the ground that a temporary disconnection of electricity was made on 30-1-2004 and that the permanent disconnection was made on 9-9-2008.

Learned counsel for the petitioner further submits that after petitioner's father stopped using electricity and that the inspecting party in the year 1991 submitted report that the boring of tube-well now failed and electricity connection was disconnected. The permanent disconnection should have been carried out within the reasonable time, and that the existing rules and the provisions of U.P. Electricity Supply Code, 2005 would not be applicable to the present case.

Sri Rajesh Tripathi submitted that until permanent disconnection is made, fresh electricity connection cannot be given.

In the present case, we prima facie find if the department found that the petitioner

was not using electricity in the year 1991 and the electricity connection was disconnected, the permanent disconnection should have been directed to be made within reasonable time. The petitioner cannot be allowed to suffer on account of fault of the electricity department. Until further orders, recovery of Rs. 1,35,529/- in pursuance of the notice dated 4-5-2009 towards permanent disconnection shall remain stayed.

The respondents will consider petitioner's application for fresh electricity connection within 15 days of moving the application, with requisite fees and the charges, without insisting upon the deposit of amount towards permanent disconnection.

Order Date :- 3.9.2009

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Court No. - 21

Case :- WRIT - C No. - 42114 of 2009

Petitioner :- Dhirendra Kumar And Others

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Shelendra Kumar Badhotia

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

None appears for the petitioners to press the petition even in revised call. Sri Veerendra Kumar Gautam holding brief of Sri Baleshwar Chaturvedi is present for respondent.

Writ petition is dismissed for want of prosecution.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.2.2023

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